

[doc. web n. 10068155]
Provision of September 26, 2024
Register of provisions
n. 606 of September 26, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003, containing the "Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC" (hereinafter "Code");

HAVING REGARD to Regulation No. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Guarantor for the protection of personal data, approved by resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8, 2019, and on www.gpdp.it, doc. web n. 9107633 (hereinafter "Guarantor Regulation No. 1/2019");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the Guarantor Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for the protection of personal data, doc. web n. 1098801;

REPORTING by Dr. Agostino Ghiglia;

PREMISED

1. Introduction.

With a complaint submitted pursuant to Article 77 of the Regulation, Mr. XX, through his lawyer, complained that the Municipality of Verona (hereinafter "Municipality"), where he performs his work, had communicated his personal data, including the fact of availing himself of the benefits provided by Law No. 104 of February 5, 1992.

In particular, it was represented that, following a request from the complainant for a new FFP2 mask, sent via email exclusively to the email address of XX - in which he explicitly referred to "my well-known pathologies" - the Municipality replied, "adding to the recipients, albeit 'for information', the email address magazzinoeconomato@comune.verona.it," referencing, in the same email, the existence of the aforementioned pathologies concerning the complainant and, furthermore, stating that there were no "specific provisions for those protected by Law 104."

2. The investigative activity.

In response to a request for information from the Authority, the Municipality, with note prot. n. XX of XX, declared, in particular, that

- "the email box 'magazzinoeconomato' to which the email dated XX at XX hours was sent for information, is an internal mailbox of the economic warehouse service (not accessible to other offices of the aforementioned Directorate), used solely for organizational and managerial purposes of the warehouse itself and for communications concerning the personnel assigned to it, with no possibility of access by third parties and/or disclosure to other personnel beyond that authorized, even if an

employee of the same Directorate (not even XX has access)";

- "during the relevant period, the persons who could access and use the mailbox were 6 (including Mr. XX): XX with specific competence on the warehouse; the person responsible for the furnishings (stored in the same warehouse); the other two warehouse staff, in addition to a third who was subsequently transferred to another Directorate and later disabled";

- "whereas the aforementioned personnel, like every municipal employee, is nonetheless required to maintain confidentiality regarding activities and/or procedures and/or internal news/communications among the various offices, XX, given that the purpose of the email was to give general instructions on the behavior to be maintained within the warehouse [...], had deemed that the communication for information to the email box 'magazzinoeconomy' was the appropriate tool to achieve this purpose";

- "the email subject to contestation dated XX at XX hours [...], followed other emails in which Mr. XX requested the supply of FFP2 masks. The aforementioned email of July 30 was addressed to Mr. XX, category D official, as the Head of the economic warehouse, as well as the holder of the organizational position 'Head of Transport Services and Setup of Institutional Events' and, for information, to the 'magazzinoeconomy' mailbox, in order to give specific instructions to the managers and staff of the warehouse regarding the general behavior to be maintained in relation to the COVID emergency";

- "in the second part of the email, in response to the request for the supply of FFP2 masks, XX intended to clarify that at that specific moment and regarding that specific PPE there were no particular provisions, not even for certain categories of employees such as, by way of example, those protected by Law 104."

made clear and specific in the relevant legal provisions" (art. 9, par. 2, lett. g), of the Regulation).

4. Conclusion.

In light of the findings from the investigation, it is evident that the processing of personal data by the Municipality, as described, did not comply with the principles of legality, fairness, and transparency, as well as data minimization, and lacked an appropriate legal basis. The actions taken by the individual XX were isolated and not representative of the Municipality's standard practices. However, the lack of awareness regarding the incident by the relevant authorities indicates a need for improved training and adherence to data protection regulations within the organization.

5. Recommendations.

It is recommended that the Municipality implement the following measures:

- Conduct training sessions for all employees regarding data protection laws and internal policies to ensure compliance.
- Establish clear protocols for the handling and communication of sensitive personal data, particularly concerning health information.
- Review and update internal procedures to ensure that all data processing activities are supported by a valid legal basis and are conducted in accordance with the principles set forth in the Regulation and the Code.

These measures aim to prevent future occurrences of similar incidents and to enhance the overall compliance framework within the Municipality regarding data protection.

****proportional to the pursued purpose, respect the essence of the right to data protection and provide appropriate and specific measures to safeguard the fundamental rights and interests of the data subject**** (art. 9, par. 2, lett. g), of the Regulation).

The employer, as the data controller, is, in any case, required to comply with the general principles regarding the protection of personal data (art. 5 of the Regulation) and must process the data through "authorized" and "trained" personnel regarding access and processing of data (arts. 4, point 10, 29, and 32, par. 4, of the Regulation).

As evidenced by the documents and statements made by the data controller during the investigation, as well as the findings made based on the elements acquired following the investigative activity and subsequent assessments by this Department, the Municipality sent a communication not only to the data subject but also to the email address magazzinoeconomy@comune.verona.it, containing information related to the complainant, including health information, as the same email refers to "his

conditions” and the specific provisions provided for those protected by Law 104 of 1992.

In general, since 2007, the Guarantor has clarified that the administration must adopt technical and organizational measures to prevent the unjustified knowledge of personal data of its employees by other colleagues or third parties, in order to avoid the undue circulation of personal information - in this case concerning information related to the health of the complainant - not only externally but also within the workplace contexts concerning unauthorized individuals (see points 2, 4, 5.1, and 5.3 of the “Guidelines on the processing of personal data of workers for the purposes of managing the employment relationship in the public sector,” of June 14, 2007, published in G.U. July 13, 2007, n. 161, and on www.garanteprivacy.it, web doc. n. 1417809).

In this regard, according to the consolidated orientation of the Guarantor (see, decisions of October 18, 2012, n. 296, web doc. n. 2174351 and n. 297, web doc. n. 2174582, as well as decision of May 8, 2013, n. 232, web doc. n. 2501216, decision of October 3, 2013, n. 431, web doc. n. 2747867 and, lastly, decision of July 31, 2014, n. 392, web doc. n. 3399423), recently confirmed in numerous decisions on individual cases, personal data of employees processed for the purposes of managing the employment relationship cannot, as a rule, be disclosed to individuals other than those who are part of the specific employment relationship (see definitions of “personal data” and “data subject,” contained in art. 4, par. 1, n. 1, of the Regulation), or to those who - also taking into account the definition of “third party,” contained in art. 4, par. 1, n. 10, of the Regulation - are not authorized to process them due to the assigned duties and the organizational choices of the data controller (see, decision n. 43 of February 23, 2023, web doc. n. 9868646 as well as decision n. 322 of September 16, 2021, web doc. n. 9711517, decision n. 214 of May 27, 2021, web doc. n. 9689234 but see also decision n. 105 of June 18, 2020, web doc. n. 9444865 and decisions of March 24, 2022, prot.n.98 web doc. n. 976305 and of February 11, 2021, n. 50 web doc. n. 9562866).

This is because, as confirmed by the Guarantor in numerous decisions, even the provision of data to individuals who, although part of the organization of the data controller, due to the role performed and the functions exercised, cannot be considered “authorized” to process (see arts. 4, n. 10, 28, par. 3, lett. b), 29, and 32, par. 4, of the Regulation, as well as art. 2-quaterdecies of the Code), may lead to a communication of personal data in the absence of a legal basis.

Information concerning workers within the workplace context may be known within the employer's organization to the extent that, in light of the applicable regulations, those who are made aware of it are deemed authorized to process it considering the assigned functions, the institutional role performed, as well as any responsibilities that, to varying degrees, rest upon them. Therefore, the employer is required, in any case, to adopt appropriate measures, including organizational ones, to ensure that no unjustified circulation of information occurs within the workplace or behaviors inspired by mere curiosity.

With regard, in particular, to health-related data, recalling that, pursuant to art. 4 par. 1, n. 15 of the Regulation, health-related data are considered “personal data concerning the physical and mental health of a natural person, including the provision of health care services, which reveal information about his or her health status,” it is specified that, as clarified by the Guarantor in numerous decisions, even the reference to Law 104, which notoriously regulates benefits and guarantees for the assistance, social integration, and employment of disabled persons or their family members, allows for the extraction of information about a person's health status (see, in this regard, decision of September 1, 2022, n. 290 web doc. 9811361, decision of April 28, 2022, n. 150, web doc. n. 9777200 and decision of May 28, 2020, n. 92, web doc. n. 9434609).

Although the Municipality has stated that “no direct reference was made to a possible granting of such benefit to Mr. XX,” the mere reference, even indirectly, to the enjoyment of such benefit may result in a communication of health-related data, considering, moreover, that in the contested email there was an explicit reference “to his conditions,” referring to the complainant's conditions.

For these reasons, the Municipality, which handles the aforementioned information exclusively through authorized personnel within the obligations and specific rights of the data controller and the data

subject, in matters of labor law (art. 9, par. 2 lett. b) of the Regulation and not instead pursuant to lett. g) of the same article, as well as art. 2-sexies of the Code), has unjustifiably made known to other employees, colleagues of the complainant (i.e., to all personnel of the "economic warehouse" office indiscriminately), personal data, including health-related data, of the data subject.

Nor can it be considered relevant, for the purposes of evaluating the overall conduct of the employer, what was stated regarding the fact that "the colleagues in the same sector were aware of the health issues" of the complainant, as expressly highlighted by the Municipality in its defensive memoranda dated XX, specifying that "this information should not have been processed, because the mere disclosure of a data that was not known constitutes a violation, but also executing a treatment lacking an appropriate legal basis, as well as carried out through unsuitable means."

In light of the above considerations, such behavior has resulted in the communication of information regarding the health of the complainant – even concerning the circumstance, albeit inferable only indirectly, that the complainant was benefiting from provisions established by regulations such as Law No. 104 of 1992, which, notably, governs assistance and guarantees for the social and labor integration of disabled persons or their family members (see, among others, provisions of April 27, 2023, No. 168, web doc 9896845 and January 11, 2023, No. 3 web doc No. 9857610, and measures referenced therein) in violation of articles 5, 6, and 9 par. 2 lett. b) of the Regulation, as well as 2-ter of the Code (in the text prior to the amendments made by Legislative Decree No. 139 of October 8, 2021, in force at the time of the facts subject to complaint).

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation – the truthfulness of which may be subject to accountability under art. 168 of the Code – although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of this procedure, nor do any of the cases provided for by art. 11 of the Regulation of the Guarantor No. 1/2019 apply.

Therefore, the preliminary evaluations of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Municipality is noted, for having communicated personal data of the data subject, including health-related data, in a manner not compliant with the principle of "lawfulness, fairness, and transparency," as well as "data minimization," and in the absence of an appropriate legal basis, in violation of articles 5, 6, and 9 par. 2 lett. b) of the Regulation, as well as 2-ter of the Code (in the text prior to the amendments made by Legislative Decree No. 139 of October 8, 2021, in force at the time of the facts subject to complaint).

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct, art. 83, par. 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, all violations are subject to the sanction provided for by art. 83, par. 5, of the Regulation, as also referenced by art. 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering, in any case, that the conduct has exhausted its effects, the conditions for the adoption of further corrective measures under art. 58, par. 2, of the Regulation do not exist.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (arts. 58, par. 2, lett. i and 83 of the Regulation; art. 166, paragraph 7, of the Code).

The Guarantor, pursuant to arts. 58, par. 2, lett. i) and 83 of the Regulation as well as art. 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to article 83, in addition to [other] measures [corrective] referred to in this paragraph, or in place of such measures, depending on the circumstances of each individual case" and, in this context, "the College [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to article 166,

paragraph 7, of the Code" (art. 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019).

In this regard, considering art. 83, par. 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by art. 83, par. 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by art. 83, par. 2, of the Regulation.

Considering that:

- with specific regard to the nature, gravity, and duration of the violation, it should be noted that the communication of personal data concerned only one data subject (see art. 83, par. 2, lett. a), of the Regulation);
- with specific regard to the subjective profile, the violation has a negligent character, admitting that the data processing carried out by XX is not compliant with the provisions of the current legislation and the company regulations, and the conduct was the result of an isolated error (art. 83, par. 2, lett. b of the Regulation); it is considered that, in this case, the level of severity of the violation committed by the data controller is medium (cf. European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative fines pursuant to the GDPR" of May 24, 2023, point 60).

Having said that, it is believed that, for the purposes of quantifying the fine, the following mitigating circumstances should be taken into account:

- the Municipality has offered a good level of cooperation with the Authority during the investigation, also stating that the Data Protection Officer has made efforts to raise awareness among the parties involved regarding the principles of personal data protection and the measures to be taken to prevent similar errors from occurring in the future (art. 83, par. 2, lett. f), of the Regulation);
- there are no previous relevant violations committed by the data controller, of the same nature as those established in relation to the complaint facts, or previous measures pursuant to art. 58 of the Regulation (art. 83, par. 2, lett. e), of the Regulation);
- the violation occurred in a context characterized by numerous organizational difficulties related to the issues of the emergency period due to the spread of the Sars Cov 2 virus (art. 83, par. 2, lett. k), of the Regulation);

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the monetary fine at €10,000 (ten thousand) for the violation of arts. 5, 6, and 9 of the Regulation, as well as 2-ter of the Code, as an administrative monetary sanction deemed, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

In this context, it is also believed that, pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Regulation of the Authority no. 1/2019, the publication of this section containing the injunction order on the Authority's website should proceed. This is in consideration of the specific circumstance that the communication concerned sensitive matters related to the employment relationship of the interested party and information also referring to special categories of data.

Finally, it is noted that the conditions of art. 17 of Regulation no. 1/2019 are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY

- declares, pursuant to art. 57, par. 1, lett. f), of the Regulation, the illegality of the processing of personal data carried out by the Municipality of Verona, for violation of arts. 5, 6, and 9 par. 2 lett. b) of the Regulation, as well as 2-ter of the Code as stated in the reasoning;

ORDERS

- the Municipality of Verona, represented by the legal representative pro tempore, with registered office at Piazza Bra, 1 - 37121 Verona (VR), C.F. 00215150236, for violation of arts. 5, 6, and 9 par. 2 lett. b) of the Regulation, as well as 2-ter of the Code as stated in the reasoning;

ENJOINS

- the aforementioned Municipality, in case of failure to resolve the dispute pursuant to art. 166, paragraph 8, of the Code, to pay the sum of €10,000 (ten thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to art. 27 of Law no. 689/1981.

It is represented that, pursuant to art. 166, paragraph 8, of the Code, the offender retains the option to resolve the dispute by paying - always according to the methods indicated in the annex - an amount equal to half of the imposed sanction within the term provided for by art. 10, paragraph 3, of Legislative Decree no. 150 of September 1, 2011, for the submission of the appeal as indicated below.

DISPOSES

- pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Regulation of the Authority no. 1/2019, the publication of the injunction order on the Authority's website;
- pursuant to art. 154-bis, paragraph 3 of the Code and art. 37 of the Regulation of the Authority no. 1/2019, the publication of this provision on the website of the Authority;
- pursuant to art. 17 of the Regulation of the Authority no. 1/2019, the annotation of the violations and the measures adopted in accordance with art. 58, par. 2 of the Regulation, in the internal register of the Authority provided for by art. 57, par. 1, lett. u) of the Regulation.

Pursuant to arts. 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree no. 150/2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, September 26, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei